

UNITED STATES DISTRICT COURT
FOR THE SOUTHERN DISTRICT OF TEXAS

BETTY CASH, VICKI LANDRUM, INDIVIDUALLY
AND AS GUARDIAN AD LITEM OF
COLBY LANDRUM

Plaintiffs,

v.

UNITED STATES OF AMERICA

Defendant.

) Amended Complaint

) Civil Action, File Number H-84-348

FIRST COUNT

1. This action arises under the Federal Tort Claims Act, 28 USC 1346 (b) , 2671 et seq., as hereinafter more fully appears. Before this action was instituted, the claims set forth herein was presented to the Department of the Air Force on December 20, 1982. Final denial of these claims, by the Department of the Air Force, was issued on September 2, 1983 and this suit was commenced within six months of said denial.

2. Plaintiff Betty Cash resides at 209 48th Street, Birmingham, Alabama. Plaintiff Vicki Landrum is the grandmother of Colby Landrum and both plaintiffs reside at 506 West Clayton, Dayton, Texas within the Jurisdiction of this Court.

3. During all times herein-after mentioned, defendant owned and operated military CH-47 double rotary type helicopters and an experimental aerial device of a hazardous nature.

4. On the evening of December 29, 1980 plaintiff Betty Cash was driving an automobile with two passengers, plaintiffs Vicki and Colby Landrum. At approximately 9:00 pm on FM Road 1485, 7 miles outside of New Caney, Texas, plaintiffs observed a large unconventional aerial object which was emitting a glow and flames. Plaintiff Betty Cash was forced to stop her automobile when the aerial object blocked the road. The plaintiffs exited the automobile and observed the object as it hovered at treetop level approximately 135 feet from them. The plaintiffs experienced intense and excruciating heat emanating from the object. After several minutes plaintiffs returned to the vehicle and the aerial object ascended. Plaintiffs then observed the object together with many military appearing helicopters, including several CH 47s double rotary type. The helicopters appeared to be escorting and/or safeguarding the object.

5. At all times hereinbefore mentioned defendant did not use proper care and skill in failing to warn or protect plaintiffs from said experimental aerial device which was clearly hazardous in nature.

6. At all times hereinbefore mentioned, defendant negligently, carelessly, and recklessly allowed said experimental aerial device to fly over a publicly used road and come in contact with plaintiffs.

7. Solely by reason of defendant's carelessness and negligence as aforesaid, plaintiff Betty Cash experienced the following symptoms and injuries: Erythema, acute photophthalmia, impaired vision, dystrophic changes in the nails, stomach pains, nausea,

vomiting, diarrhea, anorexia, loss of energy, lethargy, scarring and loss of pigmentation, excessive hair loss and hair regrowth of a different texture and cancer and removal of right breast. The extent of permanent disability is unknown at this time and the plaintiff's condition is subject to deterioration. The plaintiff has suffered and continues to suffer great pain of body and mind and incurred expenses for medical attention and hospitalization in the sum of TEN MILLION (\$10,000,000.00) DOLLARS.

8. The aforesaid injuries were caused solely by the defendant, its agents, servants or employees and without any negligence on the part of the plaintiff contributing thereto.

9. If the defendant were a private person, it would be liable to the plaintiff in accordance with the law of Texas.

WHEREFORE plaintiff Betty Cash demands judgement against defendant, in the sum of TEN MILLION (\$10,000,000.00) DOLLARS and costs.

SECOND COUNT

10. Plaintiff Vicki Landrum repeats and realleges each and all of the allegations contained in paragraphs 1 through 6 as well as those contained in paragraph 9 of the First Count of this complaint with like effect as if herein fully repeated.

11. As a result of the above mentioned incident, plaintiff Vicki Landrum, experienced the following symptoms and injuries: Photophthalmia, greatly diminished vision, stomach pains, diarrhea, anorexia, ulceration of the arms, scarring and loss of pigmentation, anichomadesis, hair loss and regrowth of a different texture. The extent of permanent disability is unknown at this time and the plaintiff's condition is subject to deterioration.

The plaintiff has suffered and continues to suffer great pain of body and mind and has incurred expenses for medical attention and hospitalization in the sum of FIVE MILLION (\$5,000,000.00) DOLLARS.

12. The aforesaid injuries were caused solely by the defendant, its agents, servants, or employees, and without any negligence on the part of the plaintiff contributing thereto.

WHEREFORE Plaintiff Vicki Landrum demands judgement against defendant in the sum of FIVE MILLION (\$5,000,000.00) DOLLARS, and costs.

THIRD COUNT

3. Plaintiff Colby Landrum repeats and realleges each and all of the allegations contained in paragraphs 1 through 6 as well as those contained in paragraph 9 of the First Count of this Complaint with like effect as if herein fully repeated.

14. As a result of the above mentioned incident plaintiff Colby Landrum experienced the following symptoms and injuries: erythema, eyes swollen and watery, progressive deterioration of vision, stomach pains, diarrhea, anorexia, weight loss, and an increase in tooth decay. At the time of the incident, the plaintiff became terrified and hysterical. He suffered from nightmares for several weeks thereafter and continues to display extreme anxiety and fear at the sight of helicopters. The extent of permanent disability is unknown at this time and the plaintiff's condition is subject to deterioration. The plaintiff has suffered and continues to suffer great pain of body and of mind exacerbated by his age, and has incurred expenses for medical attention and hospitalization in the sum of FIVE MILLION (\$5,000,000.00) DOLLARS.

15. The aforesaid injuries were caused solely by the defendant, its agents, servants, or employees, and without any negligence on the part of the plaintiff contributing thereto.

WHEREFORE Plaintiff Vicki Landrum as Guardian ad litem for plaintiff Colby Landrum demands judgement against defendant in the sum of FIVE MILLION (\$5,000,000.00) DOLLARS and costs.

Signed

